

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2023CUBC016832: VICTOR ORLANDO AYALA CARDONA, et al. vs FORD MOTOR
COMPANY, et al.**

**09/09/2026 in Department 44
Motion to Tax Costs**

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoqs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Ford Motor Company’s Motion to Strike/Tax Plaintiffs’ Memorandum of Costs

Tentative Ruling:

Defendant Ford Motor Company’s Motion to Strike/Tax Plaintiffs’ Memorandum of Costs is GRANTED in part DENIED in part.

The Court TAXES \$60.00 from Item 1(b), \$625.00 from Item 11, \$107.00 from Item 14, and \$153.14 from Item 16, for a total reduction of \$945.14. The Court DENIES the motion as to Item 8(a) (\$15.00) and Item 8(b) (\$1,086.25).

The January 27, 2026 Wirtz Law APC Memorandum of Costs is reduced from \$7,592.94 to \$6,647.80.

Defendant Ford Motor Company to give notice.

I. Preliminary Matters

A. The Motion Is Timely, but the Relief Is Limited to the Items Identified in the Notice

The Wirtz MOC was served electronically on January 27, 2026, and Ford filed its motion on February 10, 2026. The motion therefore falls within the 15-day period prescribed by California Rules of Court, rule 3.1700(b)(1), even without applying the extension for electronic service.

The notice of motion identifies six challenged items and seeks to tax \$2,183.59. Rule 3.1700(b)(2) requires a motion that does not challenge the entire cost memorandum to identify each disputed item by number and state why it should be taxed. Ford's reply nevertheless asks the Court to tax the entire \$7,592.94, or alternatively at least \$1,864.39. The request to strike the entire Wirtz MOC materially exceeds the relief stated in Ford's notice and expands the motion after Plaintiffs' opportunity to oppose. The Court therefore confines its ruling to Items 1(b), 8(a), 8(b), 11, 14, and 16.

Plaintiffs, conversely, ask the Court to order Ford to pay \$1,882.45 claimed in a separate memorandum of costs filed by Norman Taylor & Associates because Ford did not move to tax that memorandum. (Rotman Decl., ¶ 3.) This request is not presented by Ford's noticed motion and concerns a separate cost memorandum not before the Court on this motion. No ruling on the Norman Taylor & Associates memorandum is thus provided here.

III. Discussion

A. Legal Standard: Motions to Tax Costs and Song-Beverly Costs and Expenses

A prevailing party claiming costs ordinarily must file a verified memorandum stating that, to the best of the declarant's knowledge and belief, the claimed items are correct and were necessarily incurred. (Cal. Rules of Court, rule 3.1700(a)(1).) Under Code of Civil Procedure section 1033.5, allowable costs must be incurred, reasonably necessary to the conduct of the litigation, and reasonable in amount. (Code Civ. Proc., § 1033.5, subd. (c)(1)-(3).)

If a cost item appears proper on its face, the verified memorandum is prima facie evidence of propriety and the party moving to tax generally bears the burden of showing the item was unnecessary or unreasonable. If the item is properly put in issue, the burden shifts to the party claiming it. (*Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774; *Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1265-1267.) Bills and invoices need not accompany the initial memorandum, but supporting documentation is required once a properly challenged item is put in issue; counsel's declaration and corroborating invoices may satisfy that burden. (*Jones, supra*, at pp. 1265-1268.)

Song-Beverly permits a broader recovery than Code of Civil Procedure section 1033.5 alone. Civil Code section 1794(d) permits a prevailing buyer to recover the aggregate amount of costs and expenses, including attorney fees, that the court determines were reasonably incurred in connection with commencement and prosecution of the action. In *Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 137-138, the Court of Appeal explained that the

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Legislature used “costs and expenses” to include expenditures outside the detailed statutory definition of costs, including expert-witness expenses. *Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 42-43, likewise held that an expense excluded from ordinary costs under Code of Civil Procedure section 1033.5 may still be recoverable under Civil Code section 1794(d) if reasonably incurred in prosecuting the Song-Beverly action.

The Song-Beverly standard does not authorize anticipated or hypothetical expenditures. Civil Code section 1794(d) requires that the expense have been reasonably incurred, and Code of Civil Procedure section 1033.5(c)(1) likewise provides that costs are allowable if incurred, whether or not yet paid.

B. Item 1(b): \$60.00 Filing Fee for Motion for Attorney’s Fees

Ford argues that the \$60.00 filing fee must be taxed because no attorney-fee motion had been filed when Plaintiffs filed the Wirtz MOC. (Borrero Decl., ¶ 6.) Plaintiffs now show that they filed their Motion for Attorney’s Fees on August 25, 2026 and paid the \$60.00 motion fee. (Rotman Decl., ¶ 7 & Ex. 2.) Thus, the expense has now been incurred, and the accepted offer expressly permits Plaintiffs to seek reasonably and actually incurred costs associated with the fee/cost motion.

The difficulty is timing. When the Wirtz MOC was verified and filed on January 27, 2026, this \$60.00 charge had not been incurred. Rule 3.1700(a)(1) requires verification that the claimed costs “were necessarily incurred,” and Code of Civil Procedure section 1033.5(c)(1) requires an incurred cost. A cost memorandum should not operate as a placeholder for future litigation expenses. The later filing of the fee motion establishes that Plaintiffs may have a contractual and statutory right to recover the \$60.00, but it does not make the item properly included in the January 27 memorandum.

The Court therefore taxes \$60.00 from Item 1(b), without prejudice to Plaintiffs seeking the now-incurred filing fee in connection with the pending fee/cost motion under paragraph 2 of the accepted offer.

C. Item 8(a): \$15.00 AutoNation Ford Witness Fee

Ford initially challenged the \$15.00 charge because AutoNation Ford was not deposed and the Wirtz MOC included no supporting invoice. (Borrero Decl., ¶ 7.) In opposition, Plaintiffs supplied the process server’s proof showing that a \$15.00 witness fee was paid when a deposition subpoena for production of business records was served on the custodian of records for Magic Acquisition Corp. dba AutoNation Ford Valencia. (Rotman Decl., ¶ 8 & Ex. 3.) Plaintiffs also supplied the subpoena, which sought repair, sale, warranty, and communication records concerning the subject vehicle and Plaintiffs. (Rotman Decl., ¶ 9 & Ex. 4.)

The fact that the dealership custodian was not ultimately deposed does not establish that the subpoena expense was unnecessary. The charge was actually paid and was tied to ordinary third-party discovery concerning the vehicle and Plaintiffs’ warranty claims. Even assuming the \$15.00 charge does not fall neatly within the ordinary-witness-fee category in Code of Civil

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Procedure section 1033.5(a)(7), it is a modest out-of-pocket discovery expense reasonably incurred in prosecuting the Song-Beverly action under Civil Code section 1794(d). Ford offers no evidence undermining the payment, relevance, or amount after Plaintiffs supplied the supporting records.

The motion is therefore denied as to Item 8(a).

D. Item 8(b): \$1,086.25 Expert Fee for Anthony Micale

Ford argues the \$1,086.25 expert expense should be taxed because the case settled before trial and the original Wirtz MOC did not include Micale's invoice. (Borrero Decl., ¶ 8.) Plaintiffs have now produced the invoice. (Rotman Decl., ¶ 10 & Ex. 5.) It reflects \$1,086.25 for coordination and planning on June 23, July 22, and July 24, 2025; one hour of preparation on July 25 for a vehicle inspection, including vehicle-pickup coordination and client interrogation; and one hour of report generation on July 28. All of these services predated the September 15 settlement.

Ford's reply argues that the fee was unnecessary because the vehicle inspection ultimately was scheduled for October 2, more than two weeks after the settlement, and that Plaintiffs could have canceled the expert. This argument does not address the actual invoice dates. The claimed fee is not for post-settlement attendance at the October 2 inspection; it is for work completed in June and July while the litigation and inspection dispute remained pending. The invoice therefore defeats the premise that the expense resulted from a failure to cancel the expert after settlement.

Expert fees not ordered by the court are ordinarily disallowed under Code of Civil Procedure section 1033.5(b)(1) unless expressly authorized by law, but Civil Code section 1794(d) supplies that authorization in Song-Beverly cases. *Jensen, supra*, at pages 137-138, specifically recognizes expert-witness expenses as within the broader statutory recovery. The MOC worksheet's printed label "Expert fees (per Code of Civil Procedure section 998)" does not forfeit Plaintiffs' right to rely on Civil Code section 1794(d), particularly where the accepted section 998 offer itself directs the fee/cost determination to section 1794(d). The documented work was performed before settlement in preparation for a vehicle inspection relevant to the warranty claims, and the amount is not facially excessive.

The motion is therefore denied as to Item 8(b).

E. Item 11: \$625.00 Anticipated Court-Reporter Fee

Ford challenges the \$625.00 reporter charge because it had not been incurred, and because Ford contends that a privately retained reporter for the fee hearing is unnecessary. (Borrero Decl., ¶ 9.) Plaintiffs' own evidence confirms the first point. Rotman states that the reporter cost is "anticipated" for the December 9, 2026 attorney-fee hearing and that it had not been incurred. (Rotman Decl., ¶¶ 5, 11.) Exhibit 6 is not an invoice in this case; it is a \$625.00 invoice from a different matter, *Shetrit v. Hyundai*, for a law-and-motion court appearance in August 2023, offered only to substantiate Plaintiffs' estimate. (Rotman Decl., ¶ 11 & Ex. 6.)

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Ford is not correct to the extent it suggests that a reporter-related expense is categorically unrecoverable under Song-Beverly merely because the court did not order a transcript. *Warren, supra*, at pages 42-43, confirms that Civil Code section 1794(d) may permit reasonable litigation expenses beyond the ordinary cost categories. But the Court need not decide whether a reporter at the future fee hearing will be reasonably necessary. There is presently no \$625.00 obligation in this case to evaluate.

Because the expense was not incurred when the Wirtz MOC was filed and remained unincurred when Plaintiffs opposed the motion, the Court taxes the full \$625.00 from Item 11, without prejudice to a later request if the expense is actually incurred and shown to be reasonable under the accepted offer.

F. Item 14: \$244.20 in Electronic Filing/Service Fees

Ford originally challenged the \$244.20 electronic filing/service total because no invoices accompanied the Wirtz MOC and Ford could not determine whether Plaintiffs were seeking duplicative filing charges. (Borrero Decl., ¶ 10.) Plaintiffs have now supplied an electronic-filing activity report and InfoTrack invoices. (Rotman Decl., ¶¶ 12-13 & Ex. 7.) Rotman acknowledges that the \$244.20 figure in the Wirtz MOC was too high and expressly agrees to reduce it by \$10.20. (Rotman Decl., ¶ 13.)

The supporting activity report shows a further timing issue. The charges that had been incurred by January 27, 2026 consist of four \$22.20 electronic-filing charges associated with 2025 filings and two \$24.20 charges associated with the January 27, 2026 memoranda of costs, totaling \$137.20. The later activity report also includes four additional \$24.20 entries: the August 25, 2026 Motion for Attorney's Fees filing, the August 26, 2026 opposition to this motion, an anticipated December 2, 2026 reply in support of the fee motion, and an anticipated February 9, 2027 request for dismissal. (Rotman Decl., ¶¶ 12-13 & Ex. 7.) The first two of these later entries were not incurred when the Wirtz MOC was filed, and the latter two still had not been incurred when the opposition was filed.

For the same reason discussed as to Item 1(b), the January 27 Wirtz MOC may recover the \$137.20 that the record shows had then been incurred, but not later or anticipated electronic-filing charges. The Court therefore taxes \$107.00 from Item 14: the \$10.20 that Plaintiffs concede, plus \$96.80 representing four \$24.20 post-memorandum entries. This leaves \$137.20 in Item 14. The ruling is without prejudice to Plaintiffs seeking later electronic-filing costs after they are actually incurred, subject to the accepted offer and avoidance of any duplicate recovery.

G. Item 16: \$153.14 in Legal Research Charges

Ford challenged the \$153.14 "research" entry because the Wirtz MOC did not explain or document the charge. (Borrero Decl., ¶ 11.) In opposition, Rotman states that the charges are Westlaw research expenses specifically tracked to this matter and incurred in connection with Plaintiffs' PMQ-deposition motion and Ford's motion to compel a vehicle inspection. (Rotman Decl., ¶ 14 & Ex. 8.) Exhibit 8 reflects case-specific charges of \$19.82 and \$133.32, which total

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\$153.14. Rotman also states that all documentary costs other than the identified anticipated electronic-filing and reporter charges were paid. (Rotman Decl., ¶ 5.)

Ford's reply characterizes computerized research as ordinary law-office overhead and contends the case did not warrant a special research expenditure. While Civil Code section 1794(d) permits reasonable case-specific litigation "expenses" beyond the ordinary cost schedule, costs sought for legal research are overhead and disallowed. The motion is therefore granted as to Item 16 in the amount of \$153.14.

H. Result

The Court taxes \$60.00 from Item 1(b), \$625.00 from Item 11, \$107.00 from Item 14, and \$153.14 from Item 16, for a total reduction of \$945.14, and denies the motion as to Items 8(a), and 8(b). The motion is otherwise denied. The Wirtz MOC is therefore reduced from \$7,592.94 to \$6,647.80.